



CHAPTER 4

An Act to confer certain immunities and privileges on the representatives in the United Kingdom of the High Authority of the European Coal and Steel Community and their staffs, and the family of the chief representative of that Authority. [27th July, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the chief Immunities representative in the United Kingdom of the High Authority and privileges of the European Coal and Steel Community (in this section referred to as “the Chief Representative”), and his family, shall be entitled—

- (a) to the like immunity from suit and legal process;
- (b) to the like inviolability of official residence, official premises and official archives; and
- (c) to the like exemption or relief from rates on official premises, and from taxes,

as are accorded respectively to the envoy of a foreign sovereign power accredited to Her Majesty and to the family of such an envoy.

(2) Subject to the provisions of this section, members of the official staff of the Chief Representative, persons representing the said High Authority at meetings in the United Kingdom of the Council of Association between Her Majesty's Government in the United Kingdom and the said High Authority, or of committees of that Council, and the alternates and members of the official staffs of such persons, shall be entitled—

- (a) to the like immunity from suit and legal process in respect of things done or omitted to be done in the course of the performance of their official duties; and

(b) to the like exemption from income tax in respect of their official emoluments,

as are accorded to members of the official staff of such an envoy as aforesaid; and members of the official staff of the Chief Representative who are recognised by Her Majesty's Government as holding a rank equivalent to that of Attaché on the staff of such an envoy, or any higher rank, shall in addition be entitled to such other exemption or relief from taxes as is accorded to members of the official staff of such an envoy holding equivalent rank.

(3) The foregoing provisions of this section, except so much of subsection (2) as provides for immunity from suit and legal process, shall not apply to any person being a citizen of the United Kingdom and Colonies; and nothing in the said subsection (2) shall be construed as conferring any immunity or privilege upon members of the family of a person to whom that subsection applies.

(4) The Chief Representative may waive any immunity, privilege, exemption or relief conferred by this section on himself or on any other person.

(5) If in any proceedings any question arises whether or not any person is entitled to any immunity, privilege, exemption or relief under this section, a certificate issued by or under the authority of the Secretary of State stating any fact relevant to that question shall be conclusive evidence of that fact.

2. This Act may be cited as the European Coal and Steel Community Act, 1955, and shall come into operation on such date as Her Majesty may by Order in Council appoint.

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